

Har Devi @ Hari Devi v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT - C No. - 9345 of 2022 · **Writ disposed of on respondent no. 2's statement that an appropriate order on a paragraph 6.14 instalment application would be passed within two weeks.**

HEADNOTE

A writ seeking acceptance of electricity dues in instalments on account of financial destruction was disposed of on respondent no. 2's statement that an application under paragraph 6.14 of Chapter VI of the U.P. Electricity Supply Code, 2005 would receive an appropriate order within two weeks of presentation of a certified copy of the order along with the application. The Court did not itself grant or refuse instalments.

FACTUAL SUMMARY

Har Devi, also called Hari Devi, filed Writ-C No. 9345 of 2022 in the Allahabad High Court against the State of Uttar Pradesh and another. She pressed only a direction that respondent no. 2 accept her electricity dues in instalments on account of financial destruction. Counsel for respondent no. 2 stated on instructions that if she applied under paragraph 6.14 of Chapter VI of the U.P. Electricity Supply Code, 2005, an appropriate order would be passed within two weeks of presentation of a certified copy of the order with the application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

Instalment of electricity dues on financial hardship

HOLDING

Where the only relief pressed is a direction to accept electricity dues in instalments on account of financial destruction, and the licensee states that an application under paragraph 6.14 of Chapter VI of the U.P. Electricity Supply Code, 2005 will be answered by an appropriate order within two weeks of presentation of a certified copy of the order along with the application, the writ is disposed of in those terms. The Court does not itself allow or refuse the instalments. ¶ 1

PRINCIPLE TAGS

instalment-facility-clause-6.14-for-financial-distress The petitioner sought instalments solely on account of financial destruction. The writ was closed on the statement that a paragraph 6.14 application would be met with an appropriate order, without a judicial grant of the facility. ¶ 1

installment-payment-clause-6.14 Respondent no. 2 undertook that an application for payment of electricity dues in instalments under paragraph 6.14 would receive an appropriate order within two weeks of the certified copy and the application being presented. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALMENTS, AND ON WHAT NUMBER OR TERMS

Left to an appropriate order on an application under paragraph 6.14. The Court neither granted nor refused instalments. ¶ 1

